

Amendment No. 1 to SB0170

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 170*

House Bill No. 1025

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-17-308(d)(2), is amended by adding the following at the end of the subdivision:

In addition to any other disposition authorized by law, the disposition must include the suspension of the minor's driving privileges or ability to obtain a driver license for a period of one (1) year in accordance with the procedures set out in title 55, chapter 10, part 7. The court may issue an order for a restricted driver license pursuant to § 55-10-705(a)(3)(B).

SECTION 2. Tennessee Code Annotated, Section 55-10-705, is amended by designating subdivision (a)(3) as subdivision (a)(3)(A) and adding the following subdivision (a)(3)(B):

(B) Notwithstanding subdivision (a)(3)(A), a restricted license may be issued under this subdivision (a)(3)(B) for a juvenile adjudicated delinquent for a violation of § 39-17-308(a)(5), if the juvenile has not previously been adjudicated delinquent for a violation of § 39-17-308(a)(5). A restricted license may be granted for travel to and from school during regular school hours, to and from and working at the person's regular place of employment, and to and from church services. This restricted license must not be granted for travel to and from social events or extracurricular school activities. An order allowing a restricted license must state with all practicable specificity the necessary time and places of permissible operation of a motor vehicle and must be made part of the judgment of the court. The juvenile offender may obtain a certified

copy of the order and within ten (10) days after the order is issued, present the order together with an application fee of twenty dollars (\$20.00), to the department of safety which shall forthwith issue a restricted license embodying the limitations imposed if the person has reached the proper age and complied with all testing requirements. After proper application and until the restricted license is issued, a certified copy of the order of judgment of the court may serve as the motor vehicle operator's license.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to acts committed on or after that date.